

under the powers of the Conveyancing and Law of Property Act, 1881, it was held, that by the order the powers of the trustee were not interfered with, except so far as the exercise of them must necessarily clash with the particular inquiries directed; that it was the duty of the trustee not to fill up the vacancies in the trusteeship without the approval of the Court; and that the proper course would have been for the trustee to apply in chambers, stating that he intended to appoint the new trustee, and if it was found that there was no objection to the appointment it would have been approved (*d*).]

17. **Acts before decree.**—But if *no decree has been made*, then, as the plaintiff may abandon his suit at any moment, the trustee must not assume that a decree will be made, but must proceed in all necessary matters with the due execution of the trust (*e*). It would not be prudent, however, except in formal matters, to act without first consulting [*618] * the Court. It was held in one case, that the trustees had not exceeded their duty by appointing new trustees after the filing of a bill, as no extra costs had been thereby occasioned (*a*); but in another case it was said that the trustees ought, under the difficulties in which they were placed, to have consulted the Court, and as, instead of so doing, they had acted independently and made an appointment, which, though they entered into evidence they could not justify, and great extra costs had arisen out of their conduct, the extra costs which had been occasioned were thrown upon the trustees personally (*b*).

18. **Lord St. Leonards' Act.**—In dealing with the subject of the powers of trustees we should call attention to the important enactment, 22 & 23 Vict. c. 35, s. 30, by which trustees [were authorised to] apply by *petition* to any judge

[(*d*) *Re Hall*, 51 L. T. N. S. 901; 54 L. J. N. S. Ch. 527.]

(*e*) See *Williams on Executors*, 891, 4th ed.

(*a*) *Cafe v. Bent*, 3 Hare, 245; [Thomas v. Williams, 24 Ch. D. 558, 567].

(*b*) *Attorney-General v. Clack*, 1 Beav. 467; and see *Turner v. Turner*, 30 Beav. 414; *Talbot v. Marshfield*, 4 L. R. Eq. 661, 3 L. R. Ch. App. 622; *Bethell v. Abraham*, 17 L. R. Eq. 24.